

**NATIONAL AGENCY FOR EXAMINATIONS (NAE) NATIONAL EXIT
EXAMINATION FOR STUDENTS OF ETHIOPIAN LAW SCHOOLS
2003- 2015 E.C ACADEMIC YEAR Law of Extra-contractual Liabilities**

1. Which of the following statements is correct among the given alternatives?

- A.** Fault of the victim totally exempts the tortfeasor or at least reduces the extent of liability that the latter owes to the victim.
- B. Existence or non-existence of fault on the part of either the victim or the defendant is absolutely irrelevant in the assessment of compensation in case of strict liability under Ethiopian law.
- C. A person is not liable under the Ethiopian tort law for damage caused due to his negligence unless the law provides otherwise.
- D. A & B.**
- E. All.

2. Which of the following statements is incorrect among the given alternatives?

- A. The prime purpose of the Ethiopian strict liability law is to ensure deterrence for potential wrongful acts.
- B. Courts in Ethiopia may apply equity only in specified circumstances to fix the amount of compensation that the victim of a tort is entitled to.
- C. Vicarious liability is a source of tort liability that does not generally require either intention or negligence on the part of the person who actually carryout the wrongful act.
- D. A & B.**
- E. A & C.**

3. Which of the following statements is correct among the given alternatives?

- A. A plaintiff in tort is required invariably to prove the existence of damage.
- B. The test for “standard of good conduct” that a judge applies in relation to a professional regarding the practicing of his profession must be the same as the one applicable for a lay-person in relation to the same act or omission.

C. There exists joint and several liability of the employee and the employer in case of vicarious liability in the Ethiopian tort law.

D. A & B.

E. A & C.

4. Briefly explain the principal and additional mode of remedies in the Ethiopian Extra-contractual Liability Law.

5. Which of the following statements is incorrect among the following alternatives?

A. A tortfeasor's liability under Ethiopian law is limited only to such damages as he anticipated or ought to have anticipated to occur.

B. Compensation may not be awarded under Ethiopian law in relation to future damage where there is complete uncertainty as to the damage to occur.

C. A mere threat of danger through dangerous activities may never constitute a cause of civil action under the extra contractual liability law of Ethiopia.

D. A&B.

E. A&C.

6. Which of the following statements is correct among the given alternatives?

A. Desire to injure is not necessarily a requirement to make the author of an utterance liable for defamation.

B. There is no liability for negligence unless the defendant breached a duty of care owed to the plaintiff.

C. The position of the Ethiopian strict liability law simply shifts from the victim to the defendant the burden of proving fault or its absence.

D. A&B.

E. A&C.

7. Which of the following acts does not constitute fault under the Ethiopian tort law?

A. Battering.

B. Defamation.

☒ C. Breach of one's contractual obligation. D. Stealing.

E. None.

8. Which of the following statements is correct among the given alternatives?

A. Employers' vicarious liability for their employees in Ethiopia is based substantially on the fault of employers.

☒ B. In relation to the vicarious liability law of Ethiopia, it is not necessary to prove either the fault or strict liability of the doer of the act.

☒ C. Harm is caused by a person through non-compliance with standard behavior

☐ D. A&B.

E. A&C.

9. Which of the following statements is incorrect among the given alternatives?

A. The fact that it is impossible to prove the fault of the defendant exempts the latter from strict liability in the Ethiopian extra contractual liability law.

B. The period of limitation for tortious actions in Ethiopia may sometimes exceed the general limitation period specified in the law of contracts.

C. A person is not liable under the Ethiopian tort law for damage caused due to his negligence unless the law specifically provides otherwise.

D. All.

☒ E. A&C.

10. Which of the following statements is correct among the given alternatives?

A. The fact that a person is legally declared liable for the act of the tortfeasor, according to the Ethiopian law, is not a bar for a plaintiff to have a claim against the doer of the act.

B. The Ethiopian law of strict liability always provides surrender options.

C. Third party creditors, under Ethiopian law, may claim compensation from a tortfeasor as legal representatives of the victim irrespective of the nature of the damage the plaintiff suffers:

D. A&B.

E. A&C.

11. The age and/or the mental condition of a person is not taken into consideration in determining whether a person is at fault in the extra contractual liability law of Ethiopia. This approach is totally unparalleled with the Country's criminal justice system where the age and mental conditions of the suspect makes a difference in the determination of his_____

Explain the major reason (s) for this difference of approach in the criminal and extra contractual liability law of Ethiopia. (7%)

12. Which of the following statements is correct among the given alternatives?

A. The “surrender option” is necessarily available to the defendant when one of his domestic animals causes damage to the plaintiff.

B. The Ethiopian Extra-contractual Liability Law does not govern issues related to immoral behavior and the consequent damage.

C. A person who causes damage against his attacker in self-defense may be relieved from tortuous liability.

D. The Ethiopian Extra-contractual Liability Law does not govern issue of unfair trade competition.

E. The Ethiopian Extra-contractual Liability Law does not apply on issues relating to physical harm.

13. Which one of the following alternatives represents defense available to the defendant under the Ethiopian Extra-contractual Liability Law?

- A. Insanity
- B. Age
- C. Illiteracy
- D. Victim's (plaintiffs) fault**
- E. Ignorance of law

14. Which one of the following incidents may not bring about strict liability on the defendant under the Ethiopian law?

- A. The defendant's dog seriously bites the plaintiff.
- B. The defendant's building collapsed and caused damage to the property of the plaintiff.
- C. The defendant's car had a faulty break which made the car to collide with and cause damage to the property of the plaintiff.
- D. The defendant's child inflicted damage to the property of the plaintiff by setting fire negligently.**
- E. The defendant manufactured food which caused serious health injury on the plaintiff.

15. Which of the following statements is incorrect among the given alternatives?

- A. Notionally, a suit for defamation will not succeed if the allegedly defamatory statement is communicated to a third party or to the public by the plaintiff himself instead of the defendant.
- B. The Ethiopian Extra-contractual Liability law governs issues relating to unlawful detention of a person and the consequent damage.
- C. Professional fault is a source of strict liability under the Ethiopian Extra- contractual Liability Law.**
- D. Unlawful competition is not a source of strict liability under the Ethiopian Extra-contractual Liability Law.
- E. Existence or otherwise of damage is necessary for vicarious liability under the Ethiopian Extra-contractual Liability Law.

16. Which one of the following situations always excludes entitlement for compensation to the plaintiff under the Ethiopian Extra-contractual Liability Law?

- A. Where there are a group of people involved in the incident and it becomes difficult who among those involved caused the damage.
- B. When the exact monetary amount of the damage is difficult to assess, though it is sure that damage occurs.

C. When it is uncertain as to whether or not future damage will occur.

- D. When the act of the defendant which caused the damage is not intentional.
- E. When the defendant is mentally unstable person.

17. Describe a circumstance (s) where a person is convicted for criminal act but exempted from extra-contractual liability under Ethiopian law. (6%)

18. Which one of the following is incorrect about tort of interference with liberty of another under the Ethiopian law of extra-contractual liability?

- A. Restriction of movement of a person should exist to establish fault of the defendant.
 - B. The person restricting the movement of another does not have a lawful authority.
 - C. The restriction of movement should not necessarily be for a long period of time to constitute fault.
- D. Inflicting injury on the plaintiff is a pre-requisite to establish fault of the defendant.**
- E. It shall be sufficient for the plaintiff to have been compelled to behave in a certain manner by the threat of a danger.

19. Which one of the following is incorrect about tort?

- A. A tort arises when a party breaches a duty imposed on him by law.
- B. In tort, there is no need for the defendant to know consciously that a duty exists.

C. Tortious liability arises where a person breaches his contractual obligation.

- D. Tort is the imposition of duties towards people generally.
- E. Tort is a civil wrong.

20. Which one of the following is tort of omission?

A. Defamation.

B. Physical assault.

C. Failure to educate.

D. Trespass.

E. Inducing a wife to abandon her husband.

21. Which one of the following is incorrect about an offence of infringement of law under Art.2035 of the Civil Code?

A. An offence is committed where the law infringed is specific.

B. An offence is committed where the law infringed is explicit.

C. Article 2035 does not apply where the offence is regulated by other provisions of extra-contractual liability law.

D. In order to say an offence is committed under Article 2035, the law infringed may be a decree.

E. An offence is committed where a person infringes any law including the laws of contract.

22. The theory of vicarious liability that attributes liability on those who have the called

A. Loss spreading.

B. Deep pocket.

C. Control test.

D. Analogy with causation.

E. Economic and moral consideration.

23. Which one of the following is incorrect about pecuniary compensation?

A. It refers to compensation of damage by way of money.

B. It is the principal mode of compensation for material damage.

C. Exceptionally, it can be used to compensate moral damage.

D. The Ethiopian law of compensation for damage as a rule follows pecuniary compensation for material damage.

E. It sometimes includes compensation in kind.

24. Which one of the following is **true** about the mode of payment of compensation under the Ethiopian law of extra-contractual liability?

A. The mode of payment is left to the discretion of the plaintiff.

B. The mode of payment is left to the discretion of the court.

C. The mode of payment is left to the discretion of the defendant.

D. Lump sum payment is the rule while periodic allowance is an exceptional mode of payment.

E. Periodic allowance is the rule while lump sum is the exceptional mode of payment

25. What could be the possible cause for the departure from the rule of equivalence in extra-contractual claims?

A. Lack of sufficient evidence proving the exact amount of damage.

B. Victim's/claimant's innocence

C. Victim's contribution to the materialization of damage.

D. Wrongful acts committed without a superior order.

E. When a person causes an intentional damage the consequence of which expanded beyond what is reasonably expected.

26. Which of the following is NOT a source of extra-contractual liability?

A. Fault.

B. Activities one engages in or things possessed by a person.

C. Where a third party for whom a person is responsible incurs liability.

D. Crime.

E. Unlawful termination of a worker's contract of employment.

27. Which of the following is NOT the possible rationale for holding a person liable for the wrongful conducts of another?

A. Control test.

B. Analogy with causation.

C. Abuse of power.

D. Deep pockets.

E. Economic and moral consideration.

28. Which of the following is NOT a remedy under the law of extra-contractual liability?

A. Monetary compensation for economic loss.

B. Restitution.

C. Remedial publication.

D. Forced performance.

E. Monetary compensation for moral damage.

29. A passenger who sustains bodily injury while travelling by the defendant's car for free can claim compensation only if he/she proves that:

A. The car has no third party insurance coverage.

B. A driver/owner is at fault.

C. He/she has committed no fault.

D. There was unjust enrichment by the owner.

E. There was a trespass by a driver

30. Which of the following liabilities under extra-contractual liability law can be contractually limited?

A. Inflicting bodily injury.

B. Defamation.

C. Liability for dangerous activities.

D. Trespass,

E. Injury to the rights of spouses.

F. All

31. List the important preconditions that are necessary to establish a fault based extra contractual liability (5 MARKS)

32. Which one of the following statements is correct?

A. The truthfulness of a defendant's statement may not in any case save him from liability for defamation in the Ethiopian law

B. The existence or otherwise of intention, according to the Ethiopian law, is not totally irrelevant to decide whether or not the defendant is at fault

C. Apart from the issue of fault, the absence of intention on the defendant's part may never be taken into consideration in his favour

D. A & B

E. B & C

33. Which one of the following statements is correct?

A. Though the existence of damage is a general and important element of the extra-contractual liability law of Ethiopia, not all types of damages are compensable

B. An employer in Ethiopia is always free from vicarious liability where one of his employees cause damage to another person in a different place and time than the worker is normally employed

C. Under the Ethiopian extra contractual liability law, the fact that it is impossible to prove the fault of the defendant exempts him from strict liability

D. D. A & B

E. E. A & C

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